

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF KAPITONOV AND OTHERS v. RUSSIA

(Applications nos. 16001/17 and 25 others –
see appended list)

JUDGMENT

STRASBOURG

9 November 2023

This judgment is final but it may be subject to editorial revision.



In the case of Kapitonov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 19 October 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, § 489, 7 February 2017, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies;

Karelin v. Russia, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016, related to disproportionate measures taken by the authorities against participants of solo manifestations; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, and *Tsvetkova and Others*, cited above, §§ 178-88, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention; *Korneyeva*, cited above, §§ 62-65, as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of their administrative-offence proceedings. In view of the findings in the above paragraphs, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), as well as to the previous just satisfaction awards made by the Court to some of the applicants in respect of their previous applications, the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that there has been a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 9 November 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	16001/17 11/02/2017	**Viktor Mikhaylovich KAPITONOV** 1995	Nikolay Sergeyevich Zboroshenko Mytishchi	Manifestation in support of Ukraine, political prisoners, and N. Savchenko Moscow 25/03/2016 Reading out loud the Constitution together with other persons Moscow 12/09/2016	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO article 20.2 § 8 of CAO	fines of RUB 10,000 and 1,000 fine of RUB 250,000	Moscow City Court, 26/08/2016 and 12/08/2016 Moscow City Court 14/12/2016	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - on 25/03/2016, from 5.30 p.m. to 8.55 p.m., - on 01/09/2016, from 7.10 p.m. to 10.30 p.m. (8.30 p.m. according to the record), - on 12/09/2016, from 7.00 p.m. to 10.15 p.m.; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Moscow City Court, 12/08/2016, 26/08/2016, 14/12/2016 and 10/04/2017; Art. 10 (1) - disproportionate measures against solo demonstrators - solo picketing on 01/09/2016 against President Putin; administrative conviction under art. 20.2 § 8 of the CAO to a fine of RUB 300,000; final decision: Moscow City Court, 10/04/2017; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same event of 25/03/2016: under	6,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								article 20.2 § 5 and under article 19.3 § 1 of the CAO, final decisions: Moscow City Court, 26/08/2016 and 12/08/2016	
2.	34912/17 06/05/2017	**Natalya Yevgenyevna NETISHINSKAYA** 1962	Nikolay Sergeyevich Zboroshenko Mytishchi	Manifestation in support of Ukraine, political prisoners, and N. Savchenko Moscow 08/03/2016	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fines of RUB 15,000 and RUB 1,000	Moscow City Court 18/11/2016 (both decisions on the same date)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings – final decisions: Moscow City Court, 18/11/2016; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same public rally of 08/03/2016: under art. 20.2 § 5 and under art. 19.3 § 1 of the CAO, final decisions: Moscow City Court, 18/11/2016 (two decisions on the same date)	4,000
3.	70527/17 07/09/2017	**Oleg Vyacheslavovich ZHITKOV** 1989	Konstantin Ilyich Terekhov Moscow	Manifestation against corruption St Petersburg 12/06/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	fine of RUB 500 and fine of RUB 10,000	St Petersburg City Court 04/07/2017	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12/06/2017, 3.00 p.m. to 13/06/2017, 1.00 p.m.; the applicant remained detained even after the record of administrative offence had been drawn up; Art. 6 (1) - impartiality of the tribunal in view of the absence of a prosecuting party in administrative proceedings – final decisions: St Petersburg City Court, 04/07/2017	4,000
4.	71203/17 26/09/2017	**1) Aleksandr Viktorovich DYACHENKO** 1990	Memorial Human Rights Centre Moscow	Manifestation against corruption following investigation of A. Navalnyy	article 20.2 § 5 of CAO, article 20.2 § 6.1 of CAO,	fines from RUB 1,000 to 20,000, as well as	Moscow City Court, decisions issued between 08/06/2017 and	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 26/03/2017 to	5,000 for Mrs Dyachenko, Sidorov, Verkhoturov,

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		2) Dmitriy Sergeyevich BYKOV 1991 **3) Aleksey Vladimirovich SIDOROV** 1986 **4) Vladimir Valeryevich VERKHOTUROV** 1983 **5) Almaz Azarovich GABDULLIN** 1975 **6) Dmitriy Nikolayevich ALEKSEYEV** 1973 **7) Aleksandr Andreyevich GLOBIN** 1990		concerning D. Medvedev Moscow 26/03/2017	article 19.3 § 1 of CAO	administrative detention of 10 days in respect of applicants nos. 2, 5 and 10 (Mrs Bykov, Gabdullin and Vasilyev)	18/07/2017	27/03/2017, the 4th applicant's detention (Mr Verkhoturov) was not recorded; the time of apprehension of some applicants indicated in the records was at variance with the real time; Mrs Dyachenko, Sidorov, Verkhoturov, Globin and Osiyuk spent more than 3 hours in police van before having been brought to the police station; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings against all the applicants – final decisions: Moscow City Court, between 08/06/2017 and 18/07/2017; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - Mrs Bykov Gabdullin and Vasilyev (applicants nos. 2, 5 and 10) were convicted twice for participating in the same public event of 26/03/2017: under art. 20.2 § 5 and under art. 19.3 § 1 of the CAO, sentenced to fines and detention	Alekseyev, Globin, Osiyuk,Olshevskiy and Kostromskoy (applicants nos. 1, 3, 4, 6 – 9 and 11) 6,000 for Mrs Bykov, Gabdullin and Vasilyev (applicants nos. 2, 5 and 10)

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		8) Andrey Alekseyevich OSIYUK 1995 **9) Aleksandr Viktorovich OLSHEVSKIY** 1955 **10) Artem Aleksandrovich VASILYEV** 1989 **11) Roman Gennadyevich KOSTROMSKOY** 1971							
5.	74563/17 12/10/2017	**Dmitriy Yuryevich ILYIN** 1977	Aleksandr Dmitriyevich Peredruk St Petersburg	Manifestation in support of rotation of high-ranked state officials St Petersburg 29/04/2017	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 10,000 and administrative detention of 5 days	St Petersburg City Court, 06/07/2017 and 01/08/2017	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.35 p.m. on 29/04/2017 to 10.30 a.m. on 30/04/2017; the applicant remained in detention even after the said protocol was drawn up; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the administrative detention was enforced immediately after the decision of the first-instance court on	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								account of the lack of suspensive effect of an appeal under the CAO; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings – The applicant was convicted twice for participating in the same public rally on 29/04/2017: under art. 19.3 § 1 (administrative detention) and under art. 20.2 § 5 (fine) of the CAO	
6.	76652/17 30/10/2017	**Olga Aleksandrovna POLYAKOVA** 1987	Olga Vladimirovna Karacheva St Petersburg	Manifestation against corruption St Petersburg 12/06/2017 Manifestation in support of A. Navalnyy St Petersburg 31/01/2021	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 and administrative detention of 12 days administrative detention of 10 days	St Petersburg City Court, 14/06/2017 and 20/06/2017 St Petersburg City Court 10/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 12/06/2017, 02.35 p.m. to 14/06/2017, in the morning, when the first instance hearings on the applicant's administrative offence case started, - from 31/01/2021, 5.15 p.m. to 01/02/2021, 9.20 a.m. when the first instance hearings on the applicant's administrative case started; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 20/06/2017 and 10/02/2021; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentences of administrative detention imposed on the applicant by the courts of first instance were executed immediately, on account of the lack of suspensive effect of an appeal under the CAO;	6,000

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								Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice regarding her participation in one public rally on 12/06/2017: under art. 19.3 § 1 and 20.2 § 5 of the CAO	
7.	82870/17 30/11/2017	**Sergey ANTIPOV** 1991	Memorial Human Rights Centre Moscow	Manifestation against corruption Moscow 26/03/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	fines of RUB 1,000 and 10,000	Moscow City Court, 31/05/2017 and 02/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings – final decisions: Moscow City Court, 31/05/2017 and 02/06/2017; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice regarding his participation in one public rally on 26/03/2017: under art. 19.3 § 1 and under art. 20.2 § 5 of the CAO	4,000
8.	83026/17 30/11/2017	**Daniil Nikolayevich KONEV** 1984	Aleksandr Dmitriyevich Peredruk St Petersburg	Manifestation against corruption St Petersburg 12/06/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 11 days, and fine of RUB 15,000	St Petersburg City Court, 16/06/2017 and 11/07/2017	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.30 p.m. on 12/06/2017 to 13/06/2017 when the applicant's trial on the administrative offence started; the applicant remained in detention after the offence record had been drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 16/06/2017 and 11/07/2017; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice	5,000

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								regarding his participation in one and the same demonstration on 12/06/2017: under art. 19.3 § 1 and under art. 20.2 § 5 of the CAO	
9.	83317/17 30/11/2017	**Anton Igorevich KHALTUNEN** 1993	Aleksandr Dmitriyevich Peredruk St Petersburg	Manifestation against corruption St Petersburg 12/06/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 8 days and fine of RUB 10,000	St Petersburg City Court, 20/06/2017 and 18/07/2017	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12/06/2017, 3.30 p.m. to 13/06/2017, 6.00 p.m. when the applicant's trial on the administrative offence proceedings started; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 20/06/2017 and 18/07/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 13/06/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for his participation on the same public assembly: under art. 20.2 § 5 and under art. 19.3 § 1 of the CAO	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
10.	84076/17 14/12/2017	**Polina Yuryevina APANASOVA** 1999	Konstantin Ilyich Terekhov Moscow	Manifestation against corruption St Petersburg 12/06/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 10 days and fine of RUB 10,000	St Petersburg City Court, 16/06/2017 and 13/06/2017	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12/06/2017 to 13/06/2017, when the applicant's trial on the administrative offence proceedings started; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 16/06/2017 and 13/06/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 13/06/2017 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
11.	84164/17 14/12/2017	**Sergey Aleksandrovich MOLODTSOV** 1981	Konstantin Ilyich Terekhov Moscow	Manifestation against corruption St Petersburg 12/06/2017	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 10,000, and administrative detention of 6 days	St Petersburg City Court 16/06/2017 and 06/07/2017	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12/06/2017, 2.30 p.m. to 14/06/2017, when the applicant's trial on the administrative offence started; the applicant remained in detention even after the said record had been drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: St Petersburg City Court 16/06/2017 and 06/07/2017;	5,000

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								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
12.	553/18 13/12/2017	**Pavel Alekseyevich ZAKHAROV** 1974	Svetlana Sergeyevna Ratnikova St Petersburg	Manifestation against corruption St Petersburg 29/04/2017	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fines of RUB 10,000 and RUB 500	St Petersburg City Court, 20/06/2017 (both decisions of the same date)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decisions: St Petersburg City Court, 20/06/2017; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings – the applicant was convicted twice for participating in the same public rally: under art. 20.2 § 5 and under art. 19.3 § 1 of the CAO	4,000
13.	2947/18 13/12/2017	**Yuliya Valeryevna ROSINA** 1974	Svetlana Sergeyevna Ratnikova St Petersburg	Manifestation against corruption St Petersburg 12/06/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 5 days and fine of RUB 10,000	St Petersburg City Court, 16/06/2017 and 23/06/2017	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.35 p.m. on 12/06/2017 to 13/06/2017; the applicant remained in detention even after the said record had been drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings - final decisions: St Petersburg City Court, 16/06/2017 and 23/06/2017; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same public rally of 12/06/2017: under art. 20.2 § 5 and under art. 19.3 § 1 of the CAO	5,000

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14.	4553/18 25/12/2017	**Valeriy Borisovich SAPRYKIN** 1979	Nikolay Sergeyevich Zboroshenko Mytishchi	Manifestation against Russian Government and corruption Khimki, Moscow region 21/05/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	fines of RUB 500 and of RUB 10,000	Moscow Regional Court, 29/06/2017 and 06/07/2017	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. 21/05/2017 to 23/05/2017 at noon; the applicant remained in detention even after the offence record had been drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: Moscow Regional Court, 29/06/2017 and 06/07/2017; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for his participation in the same public rally on 21/05/2017: under art. 19.3 § 1 and under art. 20.2 § 5 of the CAO	5,000
15.	5196/18 29/12/2017	**Aleksandr Gennadyevich SOKOVNIN** 1961	Ivan Yuryevich Zhdanov Vilnius	Manifestation against corruption St Petersburg 12/06/2017	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court, 06/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: St Petersburg City Court, 06/07/2017; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same public rally on 12/06/2017:	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								under art. 19.3 § 1 (administrative detention of 10 days, final decision of 16/06/2017) and under art. 20.2 § 5 of the CAO (fine of RUB 10,000, final decision of 06/07/2017)	
16.	8014/18 13/01/2018	**Lidiya Borisovna GRIBKOVA** 1995	Marina Vladimirovna Bukina St Petersburg	Manifestation against corruption St Petersburg 12/06/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	fines of RUB 500 and of RUB 10,000	St Petersburg City Court 13/07/2017 (both decisions on the same date)	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. 12/06/2017 to 13/06/2017, until the hearings in the applicant's administrative offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 13/07/2017; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for her participation in the same public rally: under art. 20.2 § 5 and under article 19.3 § 1 of the CAO	5,000
17.	21998/18 18/04/2018	**Andrey Okhizovich ZHEKSIMBAYEV** 1986	Aleksandr Dmitriyevich Peredruk St Petersburg	Manifestation in support of Navalnyy and free elections St Petersburg 08/10/2017	article 19.3 § 1 of CAO, article 20.2 § 8 of CAO	administrative detention of 15 days and 17 days respectively	St Petersburg City Court 25/10/2017 (both decisions of the same date)	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 10.20 p.m. on 08/10/2017 to 2.00 p.m. on 09/10/2017, - from 3.45 p.m. on 04/04/2018 to 10.45 a.m. on 05/04/2019, when the applicant's trial on the administrative-offence under 19.3 § 1 of CAO started;	6,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 25/10/2017; Art. 10 (1) - disproportionate measures against solo demonstrators - The applicant held a solo picket in St Petersburg, he was convicted under art. 20.2 § 2 of the CAO to an administrative detention of 9 days. Final decision: St Petersburg City Court, 09/04/2019; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same public event: under art. 19.3 § 1 and under art. 20.2 § 8 of the CAO	
18.	40322/18 20/08/2018	**Anastasiya Ivanovna KADETOVA (former SEMENOVA)** 1998	Sergey Aleksandrovich Golubok The Hague	Manifestation against Mr Putin's re-election as President St Petersburg 05/05/2018 Manifestation in support of A. Navalnyy Moscow	article 20.2 § 8 of CAO, article 19.3 § 1 of CAO article 19.3 § 1 of CAO	administrative detention of 5 days, administrative detention of 4 days administrative detention of 10 days	St Petersburg City Court 08/05/2018 (two decisions of the same date) Moscow City Court 06/04/2021	Art. 5 (1) - unlawful deprivation of liberty: 1) escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.15 p.m. on 05/05/2018 to 06/05/2018, when the applicant's trial on the administrative-offence case started, 2) unlawful escorting to the police station from on 7.35 p.m. to 10.05 p.m. on 17/01/2021 for the purpose of drawing up a record of administrative offence, while the said report was drawn up only on 25/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions:	2,000

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				17/01/2021				St Petersburg City Court, 08/05/2018 and Moscow City Court, 06/04/2021; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same public event on 05/05/2018: under art. 20.2 § 8 and under art. 19.3 § 1 of the CAO	
19.	49988/18 10/10/2018	**Anatoliy Arkadyevich BYKOVSKIY** 1989	Ivan Yuryevich Zhdanov Vilnius	Manifestation against Mr Putin's re-election as President St Petersburg 05/05/2018	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	two fines of RUB 500 and 10,000 respectively	St Petersburg City Court 07/06/2018 (both decisions of the same date)	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.15 p.m. on 05/05/2018 to 10.51 a.m. on 06/05/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: St Petersburg City Court 07/06/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same public event on 05/05/2018: under art. 20.2 § 5 (fine of RUB 10,000) and under art. 19.3 § 1 (fine of RUB 500) of the CAO	5,000
20.	50059/18 10/10/2018	**Vsevolod Germanovich MALTSEV** 1996	Ivan Yuryevich Zhdanov Vilnius	Manifestation against Mr Putin's re-election as President Voronezh 05/05/2018	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 10,000, administrative detention of 2 days	Voronezh Regional Court, 26/06/2018 and 18/06/2018	Art. 5 (1) – unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence, from 5.45 p.m. on 05/05/18 to an unspecified time; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the	5,000

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								administrative-offence proceedings– final decisions: Voronezh Regional Court, 26/06/2018 and 18/06/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same event: under art. 19.3 § 1 (administrative detention) and under art. 20.2 § 5 (fine) of the CAO	
21.	50120/18 10/10/2018	**Aleksandr Malkhazovich ALKHAZOV** 1998	Memorial Human Rights Centre Moscow	Manifestation against Mr Putin's re-election as President St Petersburg 05/05/2018	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 10,000, administrative detention of 5 days	St Petersburg City Court 19/06/2018 (both decisions on the same date)	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.20 p.m. on 05/05/2018 to 9.30 a.m. on 06/05/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: St Petersburg City Court 19/06/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same event: under art. 19.3 § 1 (administrative detention) and under art. 20.2 § 5 (fine) of the CAO	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
22.	50216/18 10/10/2018	**Denis Grigoryevich BONDAREV** 1995	Ivan Yuryevich Zhdanov Vilnius	Manifestation against Mr Putin's re-election as President Voronezh 05/05/2018	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 10,000, administrative detention of 5 days	Voronezh Regional Court 20/06/2018 (both decisions on the same date)	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.50 p.m. on 05/05/18 to 06/05/2018 in the morning; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: Voronezh Regional Court, 20/06/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same event: under art. 19.3 § 1 (administrative detention) and under art. 20.2 § 5 (fine) of the CAO	5,000
23.	50261/18 10/10/2018	**Nikita Andreyevich MESHCHERYAKOV** 1998	Ivan Yuryevich Zhdanov Vilnius	Manifestation against Mr Putin's re-election as President Voronezh 05/05/2018	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 10,000, administrative detention of 3 days	Voronezh Regional Court 18/06/2018 (both decisions on the same date)	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.30 p.m. on 05/05/2018 to 06/05/2018, when the hearings in the applicant's administrative-offence case started; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: Voronezh Regional Court, 18/06/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice	5,000

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								for participating in the same public event: under art. 19.3 § 1 (administrative detention) and under art. 20.2 § 5 (fine) of the CAO	
24.	50535/18 10/10/2018	**Aleksey Igorevich VALUYSKIY** 1992	Ivan Yuryevich Zhdanov Vilnius	Manifestation against Mr Putin's re-election as President Voronezh 05/05/2018	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 10,000, administrative detention of 5 days	Voronezh Regional Court, 18/06/2018 and 25/06/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.10 p.m. on 05/05/2018 to 06/05/2018 when the applicant's first instance hearing on the administrative offence started; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: Voronezh Regional Court, 18/06/2018 and 25/06/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same event: under art. 19.3 § 1 (administrative detention) and under art. 20.2 § 5 (fine) of the CAO	5,000
25.	50641/18 10/10/2018	**Sergey Ivanovich ATAPIN** 1985	Ivan Yuryevich Zhdanov Vilnius	Manifestation against Mr Putin's re-election as President Voronezh 05/05/2018	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 10,000, administrative detention of 4 days	Voronezh Regional Court, 25/06/2018 and 04/07/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.00 p.m. on 05/05/2018 to 06/05/2018, when the applicant's trial on the administrative-offence case started;	5,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings– final decisions: Voronezh Regional Court, 25/06/2018 and 04/07/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for the participation in the same event: under art. 20.2 § 5 and under art. 19.3 § 1 of the CAO	
26.	54646/18 25/10/2018	**Nikita Alekseyevich ZARETSKIY** 1992	Aleksandr Dmitriyevich Peredruk St Petersburg	Manifestation against Mr Putin's re-election as President St Petersburg 05/05/2018	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 10,000, administrative detention of 7 days	St Petersburg City Court, 21/06/2018 and 11/05/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": 1) from 6.20 p.m. on 05/05/2018 to 10.40 a.m. on 06/05/2018, 2) from 6.55 p.m. on 23/01/2021 to 4.00 p.m. on 24/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 21/06/2018 and 11/05/2018; Art. 10 (1) - disproportionate measures against solo demonstrators – the applicant held a solo picket in support of Mr Navalnyy in St Petersburg, on 23/01/2021, he was convicted and sentenced to an administrative fine of RUB 10,000, final decision: 04/02/2021, St Petersburg City Court;	5,000

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								Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participating in the same event on 05/05/2018: art. 19.3 § 1 (administrative detention) and under art. 20.2 § 5 (fine) of the CAO	

[1] Plus any tax that may be chargeable to the applicants.